

made by the party; and the rules for executing a trust have often varied, and therefore they only are bound by it who come in in privity of estate; but a power of redemption [*249] is an equitable right inherent in the land, and binds all persons in the *post* or otherwise (*a*), because it is an ancient right which the party is entitled to in equity" (*b*). But upon this distinction it must be observed, that even a trust will at the present day bind persons who take derivatively from the trustee, though in the *post*; and notwithstanding an equity of redemption amounts to what Lord Hale calls a *title* (*c*), there seems to be no reason why in the case of escheat the lord, who takes by title paramount, should be bound by an equity of redemption any more than by a simple trust (*d*).

Viscount Downe v. Morris.—In a late case (*e*), however, the distinction between an equity of redemption and a trust was observed upon, and the Court expressed an opinion that a lord who was in by escheat would be bound by an equity of redemption, if not by a trust (*f*).

11. Real estate escheating is assets in the hands of the lord.—The 3 & 4 W. 4, c. 104 (which subjects a person's real estate to the payment of his simple contract debts), annexes the quality of assets to the estate itself, and, subject to the right of alienation by the heir or devisee (*g*), creates a charge on the estate for the benefit of the creditors (*h*); and it has

(*a*) *Seem* not a purchaser without notice; see *Harding v. Hardrett*, Rep. t. Finch, 9; *Spurgeon v. Collier*, 1 Eden, 55.

(*b*) *Pawlett v. Attorney-General*, Hard. 469; and see *Bacon v. Bacon*, Tothill, 133; *Burgess v. Wheate*, 1 Eden, 206; *Tucker v. Thurston*, 17 Ves. 133.

(*c*) See *Pawlett v. Attorney-General*, Hard. 467.

(*d*) See *Burgess v. Wheate*, 1 Eden, 255; *Attorney-General v. Duke of Leeds*, 2 M. & K. 344. *Pawlett v. Attorney-General*, Hard. 465, in which Lord Hale and Baron Atkins thought the king was bound by an equity of redemption, was not a case

of *escheat*, as called by Lord Hale, but of *forfeiture*.

(*e*) *Viscount Downe v. Morris*, 3 Hare, 394.

(*f*) *Ib.*

(*g*) *Spackman v. Timbrell*, 8 Sim. 253; *Richardson v. Horton*, 7 Beav. 112; *Hynes v. Redington*, 10 Ir. Ch. Rep. 194; *Pimm v. Insall*, 7 Hare, 193; 1 Mac. & G. 449; and see *Dilkes v. Broadmead*, 2 Giff. 113.

(*h*) *Evans v. Brown*, 5 Beav. 116 N. B. This case was appealed and compromised. *Hamer's Devises*, 2 De G. M. & G. 366; *Beale v. Symonds*, 16 Beav. 406; *Kinderley v. Jervis*, 22 Beav. 1.